

Privacy Policy (Draft for Advocate Review)

[COMPANY LEGAL NAME] · Kova Agent · Last updated: [DATE]

DRAFT FOR DISCUSSION — NOT LEGAL ADVICE — REVIEW WITH KENYAN ADVOCATE

Adapted from live template: `templates/pages/privacy.html`. Deploy reviewed version to `/privacy/`.

1. Introduction

Kova Agent ("Kova," "we," "us") is operated by [COMPANY LEGAL NAME] of [REGISTERED ADDRESS]. This Privacy Policy explains how we collect, use, disclose, and safeguard personal data when you use our website, applications, and services (the "Service").

By using the Service you agree to this policy. If you do not agree, discontinue use.

We process personal data in accordance with the **Kenya Data Protection Act 2019** and applicable regulations of the **Office of the Data Protection Commissioner (ODPC)**.

2. Information we collect

2.1 Information you provide

- **Account data** — name, email, password, company/brand name, industry, preferences
- **Payment data** — billing details processed by **Stripe** and **M-Pesa** (we do not store full card numbers)
- **Content** — text, images, brand voice, pillars, uploads
- **Communications** — support messages

2.2 Information collected automatically

- Usage data, cookies (see Cookie Policy), logs, IP address, device/browser

2.3 Information from third parties

- **Social platforms** — when you connect accounts (Facebook, Instagram, LinkedIn, X/Twitter, TikTok, YouTube, Pinterest, Threads, Bluesky): profile metadata, posts, metrics, comments, messages via platform APIs
- **OAuth tokens** — stored encrypted for Service operation
- **Partner referrals** — referral codes from Growth Partner Program

3. How we use information

- Operate and improve the Service, including six AI agents (Research, Create, Adapt, Engage, Analyst, Chief Strategist)

- Generate, schedule, and publish content on connected accounts
 - Analyze engagement and deliver Daily Briefs and reports
 - Process subscriptions (Plan v2 tiers: Starter, Growth, Pro, Agency)
 - Send transactional and (with consent) promotional email
 - Detect fraud and abuse; comply with law
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4. AI processing & automated decision-making

- Brand voice and content are processed by **LLM providers** (e.g., OpenRouter) to generate drafts and reply suggestions
 - Engagement data is analyzed for sentiment and priority
 - **You retain control** — edit, approve, or reject AI outputs before publication unless you enable auto-approve on eligible tiers
 - We do **not** use your data to train third-party foundation models (contractual basis with providers)
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5. How we share information

We do **not sell** personal data. We share only with:

- Social platforms (to publish and fetch data you authorised)
- AI/LLM, payment, email, and cloud providers (hosting, **Cloudflare R2, Railway**)
- Team members you designate via multi-brand/team features
- Authorities when required by law
- Successors in merger/acquisition (with notice)

Subprocessor list: [\[LINK TO SUBPROCESSOR PAGE / DATA ROOM\]](#)

6. International transfers

Data may be processed in **[KENYA / EU / US — specify hosting regions]**. Appropriate safeguards (contracts, adequacy) per DPA 2019.

7. Retention

We retain data while your account is active and as needed for legal, tax, and dispute purposes. Disconnecting social accounts clears tokens; content history may be retained per your settings.

8. Your rights

Subject to Kenyan law, you may request **access, correction, deletion, restriction, portability, and objection**. Contact: **[PRIVACY EMAIL]**. You may lodge a complaint with the **ODPC**.

9. Security

We use encryption, access controls, and monitoring appropriate to a SaaS platform. No method is 100% secure.

10. Children

The Service is not directed to persons under **18**.

11. Changes

We may update this policy with notice via the Service or email. Material changes will be highlighted.

12. Contact

[COMPANY LEGAL NAME]
[REGISTERED ADDRESS]
Email: [PRIVACY EMAIL]
DPO (if appointed): [DPO NAME / EMAIL]

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